



POLICE DEPARTMENT

June 14, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202300694 (Incident Date: January 7, 2023) regarding Police Officer Danny Rodriguez, Tax No. 957089 (DADS No. 2024-30680)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202300694, pertaining to Police Officer Danny Rodriguez. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Police Officer Rodriguez would be detrimental to the Police Department's disciplinary process.

In this matter, the Police Commissioner has determined Police Officer Rodriguez's remarks were discourteous, however they do not rise to the level of being sexually suggestive. Based on body worn camera video and Police Officer Rodriguez's testimony, the Police Commissioner has determined his remarks were facetious and said in a sarcastic manner. Notably, the complainant was not interviewed by CCRB, and the other party who notified CCRB, did not allege that Police Officer Rodriguez spoke in a sexually suggestive manner. Nevertheless, Police Officer Rodriguez's remarks were discourteous and unprofessional.

A review of Police Officer Rodriguez's disciplinary history revealed no prior substantiated CCRB allegations, and no formal Department disciplinary history. During the course of his almost ten (10) year career Police Officer Rodriguez has been awarded forty-one (41) Department medals. Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the New York City Police Department, the Police Commissioner, in the interest of justice and to

COURTESY • PROFESSIONALISM • RESPECT

Website: <http://nyc.gov/nypd>

retain jurisdiction over this matter, intends to issue a Schedule "A" Command discipline, utilizing the presumptive penalty for discourtesy.

Sincerely,

AS
Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

June 19, 2024

The Honorable Edward Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, New York 10038

Re: CCRB v. Police Officer Danny Rodriguez
Disciplinary Case No.: 2024-30680

Dear Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated June 14, 2024, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to retain jurisdiction over this matter and issue a Schedule “A” Command Discipline and impose the presumptive penalty for Discourtesy. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding (hereinafter referred to as the “MOU”) between CCRB and the New York City Police Department. I am responding to Deputy Chief Marino’s notification.

Deputy Chief Marino stated that you disagree with the findings that Police Officer Rodriguez made sexually suggestive remarks to § 87(2)(b). Deputy Chief Marino stated that you determined that the remarks made by Police Officer Rodriguez were “facetious” and said in a “sarcastic manner”. Deputy Chief Marino stated that you concluded that his remarks did not rise to the level of being sexually suggestive and instead found the remarks to be simply discourteous. CCRB strongly disagrees with this determination. In addition, CCRB’s determination that Police Officer Rodriguez made sexually suggestive remarks to a civilian is not ripe for determination at this point in the disciplinary process.

During his CCRB interview Police Officer Rodriguez conceded that he said to § 87(2)(b) that he had a “nice ass” and a “sweet ass”. While Police Officer Rodriguez tried to excuse his behavior by stating that his statements were “sarcastic” and a “joke” in which he intended to “lighten up the situation”, the circumstances in which these statements were made clearly show that his remarks did not lighten up the situation nor did they come off as a joke for § 87(2)(b). While § 87(2)(b) did not provide a statement to the CCRB, a witness, § 87(2)(b) did provide a statement and informed the

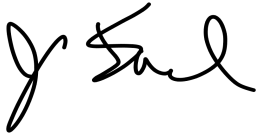
CCRB that § 87(2)(b) complained that an officer was “grabbing his ass”. In addition, § 87(2)(b) can be heard on BWC footage complaining of inappropriate touching. The statements made by Police Officer Rodriguez in response to § 87(2)(b) complaints are also clearly captured on BWC footage. Starting at 9:04 of Police Officer Rodriguez’s BWC, his remarks about § 87(2)(b) “ass” are audible. At least six officers are in the immediate vicinity when he makes these remarks. At 8:51 in Sergeant Johnson’s BWC, Police Officer Rodriguez’s commentary is heard. Police Officer Gouvousis seemingly overhears the comment, elbows Police Officer Rodriguez, and laughs. Detective Perez’s BWC footage also captures the statements as well as the circumstances surrounding when the statements were made. At 16:20 in Detective Perez’s BWC, officers are attempting to handcuff § 87(2)(b) and place him under arrest. § 87(2)(b) is pressed up against the driver’s side of his vehicle. As officers try to cuff him, at 17:22, § 87(2)(b) yells out “why you grabbing my ass? This nigga grabbed my ass.” At 17:31 in Detective Perez’s BWC, Police Officer Rodriguez says, “you got a nice ass.” § 87(2)(b) overhears this remark and says, “nigga said I got a nice ass.” Seemingly in response, Police Officer Rodriguez says, “you got a sweet ass.” (202300694_20230214_1022_DM).

Patrol Guide Procedure 200-02 mandates that officers should maintain a higher standard of integrity than is generally expected of others, respect the dignity of each individual, and render services with courtesy and civility. Additionally, Administrative Guide 304-06 states that officers are prohibited from engaging in conduct prejudicial to good order, efficiency, or discipline of the department. Lastly, Patrol Guide Procedure 205-36 defines sexual harassment as unwelcome sexual advances, requests for sexual favors, and other verbal or physical conduct of a sexual nature. As discussed above, Police Officer Rodriguez’s remarks and the surrounding circumstances in which they were made are clearly captured on BWC footage. The BWC footage shows that Police Officer Rodriguez’s remarks were sexually suggestive as he inappropriately referred to § 87(2)(b) body and were only made after § 87(2)(b) complained of inappropriate touching. Police Officer Rodriguez’s remarks imply that § 87(2)(b) was groped because of his body. When § 87(2)(b) complained about this demeaning commentary, Police Officer Rodriguez doubled down by stating that he had a “nice ass” and a “sweet ass”. Police Officer Rodriguez’s response served no legitimate purpose but to belittle § 87(2)(b) in a sexually demeaning fashion and thus were sexually suggestive and violated the Patrol Guide.

By minimizing these remarks to a “Disourtesy” charge and imposing a Command Discipline Schedule ‘A’ with the presumptive penalty, Police Officer Rodriguez is not truly being held accountable for this serious misconduct. Even though Police Officer Rodriguez has no formal Department disciplinary history, the misconduct in this case is serious and CCRB believes the imposition of a Command Discipline Schedule “A” does nothing to deter such behavior by members of service.

While it is recognized that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, based upon the foregoing, it is respectfully requested that you permit CCRB to pursue the filed Charges and Specifications against Police Officer Rodriguez in this matter.

Respectfully submitted,



Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

June 24, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202300694 (Incident Date: January 7, 2023) regarding Police Officer Danny Rodriguez, Tax No. 957089 (DADS No. 2024-30680)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated June 19, 2024, concerning the Civilian Complaint Review Board ("CCRB") case involving Police Officer Police Officer Danny Rodriguez. Nevertheless, he maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer Rodriguez for the reasons expressed in my June 14, 2024 letter.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over this matter, directs the issuance of a Schedule "A" Command Discipline with the forfeiture of five (5) vacation days for the allegation of discourtesy.

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office